

LW5603A: LAW OF TORT I

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Law of Tort I

Subject Code

LW - Law

Course Number

5603A

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW2603 Law of Tort (LLB), LW2603A Law of Tort I (LLB), LW5603 Law of Tort (JD), LW6165E Law of Tort (only applicable to students who completed LW6165E before Sem A 2019/20)

Exclusive Courses

LW6565E Law of Tort (LLM)

Part II Course Details

Abstract

This course aims to encourage students to discover the nature and purpose of tort law its origins, development and limitations and legal principles of major tort law issues. It will equip students with the following capabilities in relation to issues in tort law:

- analytical and problem-solving skills necessary to advise on issues of liability in tort;
- effective written and oral communication skills, which are of a international standard;
- research skills and ignite a passion and motivate to discover knowledge.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Analytically and critically describe and explain the main substantive rules of tort law pertaining to the topics to be covered in the syllabus. This is to promote a culture of knowledge and innovation		x	x	
2	Analyse and critically evaluate: - issues and concerns in the field of tort law - operation of the substantive rules of tort law: in terms of its objectives and practical implications locally and globally; in social context and; in relation to the law of contract.		x	x	
3	Apply the principles of tort law to solve legal problems by: - researching issues of tort law - analysing and resolving problems concerning issues of tort law - Communicating solutions in their own words orally and in writing in a clear, coherent and accurately manner.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Reading cases, other material and research	Students will acquire knowledge of the substantive rules of tort law pertaining to the topics to be covered in the syllabus. Preparation outside the class and encourage innovative thinking	1	
2	Lectures	Students will be given guidance by the Course Leader on the major concepts of tort law and also provide guidance on their reading and research for their lectures and tutorials. Course leader will promote learning by raising questions and responding to questions and set small in class exercises to develop as well as encourage analytical and critical capabilities of students on the important issues of liability pertaining to topics covered in the syllabus.	1	2
3	Lectures	Students will be introduced to issues and concerns and aspects of the operation of the substantive rules of tort law.	2	
4	Lectures	Students will be shown how legal problems are solved applying tort law.	3	
5	Preparation for tutorials	Students will research issues of the tort law on weekly basis on the set tutorial problems.	2	
6	Preparation for tutorials	Students will research issues of tort law.	3	

7	Tutorials	Students will give presentations/moot on selected topics in which they will scrutinise, analyse and evaluate tort law issues and concerns in relation tutorials problem.	2	1
8	Tutorials	Students will give presentations and moot on selected topics and scrutinise, analyse and evaluate tort law issues and concerns.	3	

Additional Information for LTAs

The aim of all the teaching and learning activities would be to facilitate and motivate students to gain extensive knowledge base and understanding of tort law and develop the capacity to analyse and synthesize tort law materials. In this process they will get a chance to demonstrate original thinking which will be discovery based.

Assessment Tasks / Activities (ATs)

ATs	CILO No.	Weighting (%)	Remarks ("- for nil entry)	Allow Use of GenAI?
1 1. Presentation (20%) - Presentations/ mooting will allow students to understand operation of law locally and globally in an innovative and critical manner - Students will be required to argue his/her case based on a problem question assigned to them. Moot tutorials will be held on problems and students will be asked to present arguments on behalf of the plaintiffs and defendants. All students will be required to contribute to tutorial discussions whether they are making a presentation or not. In mooting, class will be divided into two teams (Plaintiffs and Defendants) and would be asked to submit their written submission. Tutor will provide the track change comments on each submission to assist students to correct their mistakes. Each team will be further divided into counsels and legal research teams, so that every student gets a change to discover knowledge whether in terms	2, 3	20	All these assessments will assess students' ability to describe and explain the main substantive rules of tort law on topics covered in the syllabus. Students will be tested by all three assessment tasks/ activities on all the three CILOs. Students' ability to analyse and critically evaluate will be tested by all three assessment tasks/activities to determine their ability to analyse and critically evaluate applicable law and issues raised. Students' ability to research, analyse and resolve problems and communicate solutions in writing and orally will be tested.	No

2	2. Assignment/s (30%) - Students' ability to research, analyse and resolve problems, and communicate solutions in writing will be tested.	3	30	All these assessments will assess students' ability to describe and explain the main substantive rules of tort law on topics covered in the syllabus. Students will be tested by all three assessment tasks/activities on all the three CILOs. Students' ability to analyse and critically evaluate will be tested by all three assessment tasks/activities to determine their ability to analyse and critically evaluate applicable law and issues raised. Students' ability to research, analyse and resolve problems and communicate solutions in writing and orally will be tested.	No
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Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Examination: Students' ability to apply the principles of tort law to given situations and resolve problems will be tested.

All these assessments will assess students' ability to describe and explain the main substantive rules of tort law on topics covered in the syllabus. Students will be tested by all three assessment tasks/activities on all the three CILOs.

Students' ability to analyse and critically evaluate will be tested by all three assessment tasks/activities to determine their ability to analyse and critically evaluate applicable law and issues raised.

Students' ability to research, analyse and resolve problems and communicate solutions in writing and orally will be tested. The use of Generative AI tools is not allowed.

Please note for this course assessment tasks are divided into examination (50%), Assignment (30%) and Presentation (20%). The motive of all the tasks used will be to motivate students to develop extensive knowledge base and sharpen their research and communication skills. These assessment tasks are formulated by the instructor to integrate learning as a part of teaching and initiate an informed and guided process to unravel knowledge from the collection of materials and information and own it as 'knowledge through discovery' and critical thinking.

Grading of Student Achievement: Standard (A+, A, A to F). Grading is based on student performance in assessment tasks / activities.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

To pass this course, students must obtain an aggregate mark of 50% and a minimum of 50% in written examination and in coursework activities i.e. tutorials and compulsory assignment.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter

To pass this course, students must obtain an aggregate mark of 40% and a minimum of 40% in written examination and in coursework activities i.e. tutorials and compulsory assignment.

Coursework for this purpose means those ways in which students will be assessed other than the end of session examination. Please note that end-of-course/semester examination would be an open book 2 hours written exam.

It must be noted that the final mark allocated to students will be based on the participation in interactive classroom activities during lectures and tutorials. It is therefore, strongly recommended that students must attend all of the lectures/ tutorials and participate in class/tutorial activities that will be a part of a final assessment.

Assessment will be formative to enable students to demonstrate their capacity to understand, analyse and apply rules and principles of tort law. This aim will be assess the instructional method of Problem-Based Learning (PBL) that will be used throughout the semester. It will also be essential to assess summative ability of students to synthesise primary and secondary material with a view to solve novel tort law problems.

Assessment Rubrics (AR)

Assessment Task

Presentation (20%) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter)

Criterion

Capacity to determine issues, analyse and critically evaluate them while applying relevant law.

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Not even reaching marginal levels

Assessment Task

Assignment (30%) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter)

Criterion

Students' ability to research and critically analyse tort problems using relevant law; determine solutions and communicate then in clear English.

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Not even reaching marginal levels

Assessment Task

Examination (50%) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter)

Criterion

Students' ability to identify and critically analyse tort problems using relevant law; determine solutions and communicate then in clear English.

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Not even reaching marginal levels

Assessment Task

Presentation (20%) (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Capacity to determine issues, analyse and critically evaluate them while applying relevant law.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Assignment (30%) (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Students' ability to research and critically analyse tort problems using relevant law; determine solutions and communicate then in clear English.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (50%) (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Students' ability to identify and critically analyse tort problems using relevant law; determine solutions and communicate then in clear English.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

The nature, scope and features of tort law, the range of interest protected by tort law, the general theory of liability in negligence: Duty of Care, Breach of Duty, Causation and Remoteness of Damages; Defences, Occupier's Liability, Employer's Liability.

Detailed Syllabus

- a. Introduction to the Law of Tort
- b. Duty of Care in General
- c. Duty of Care: Psychiatric Illness
- d. Duty of Care: Pure Economic Loss
- e. Duty of Care: Omissions and Duty to Third Parties
- f. Breach of Duty
- g. Causation
- h. Remoteness
- i. Defences to Negligence
- j. Occupier's Liability
- k. Employer's Liability

Reading List

Compulsory Readings

Title	
1	Nil

Additional Readings

Title	
1	Textbook
2	Rick Glofcheski, Tort Law in Hong Kong (4th ed.) (Sweet and Maxwell, 2018)
3	Supplementary Reading
4	W. V. H. Rogers, Winfield and Jolowicz on Tort (19th ed.) (Sweet and Maxwell/Thomson Reuters, 2014)
5	C. Witting, Street on Torts (15th ed.) (Oxford University Press, 2018)
6	M. Lunney & K Oliphant, Tort Law: text and materials (6th ed.) (Oxford University Press, 2017)
7	P. Giliker, Tort (6th ed.) (Sweet and Maxwell, 2017)
8	P J Bokhary, N Sarony and D K Srivastava, Tort Law and Practice in Hong Kong (3rd ed.) (Sweet and Maxwell 2014)
9	Please note that for student's convenience and easy accessibility the Course Leader has arranged to put some copies of the recommended textbooks in the Semi-closed Reserve in the library. Students can locate these books/ item(s) through our Library Catalogue under "Course Reserves" either by "Instructor" or by "Course". Course Leader has already provided the call numbers of all the books to be used.
10	Other Materials
11	Reference should be made to legislation and law reports both in Hong Kong and in other jurisdictions. For Hong Kong reference should be made to:
12	The Hong Kong Cases (HKC)
13	The Hong Kong Law Reports and Digest (HKLRD)
14	Online Resources
15	In order to keep track of new developments on law of tort particularly in Hong Kong students are expected to use various library electronic resources on law including databases like LEXIS.com, HK Law Databases and Westlaw International. Please note this will improve student's research skills.
16	Reference should also be made to web-sites, for example The Times (newspaper) for its law reports. Simply reading textbooks will not provide sufficient up-to-date knowledge of developments in tort law that is essential for achieving good marks in this subject.